

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Index No.:

-----X
FABIAN SULLIVAN,

SUMMONS

Plaintiff,

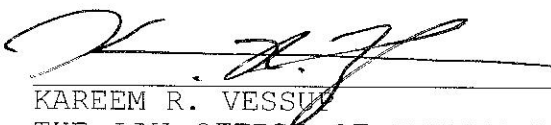
Plaintiffs designate
QUEENS County as the
place of trial.

-against-

THE CITY OF NEW YORK, DET. TIMOTHY VILLANI
ON ARREST #Q1164459 SDS FRANK LIBRETTO ON
ARREST #Q1164459,The basis of venue
is where the Tort
arose and where
Plaintiff residesDefendants.
-----XThe Tort Arose in:
QUEENS COUNTY, NEW
YORK

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs' attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: JAMAICA. NEW YORK
MAY 29, 2013KAREEM R. VESSUP
THE LAW OFFICE OF KAREEM R. VESSUP
ESQ.Attorneys for Plaintiff
FABIAN SULLIVAN
89-31 161st Street, Suite 705
Jamaica, New York 11432
Our File No. 12-1309TO: Corporation Counsel of
The City of New York
100 Church Street
New York, NY 10007Det. Timothy Villani
1 Police Plaza, Room 1100

New York, NY 10038

SDS. Frank Libretto
1 Police Plaza, Room 1100
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

-----X
FABIAN SULLIVAN,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, DET. TIMOTHY VILLANI
ON ARREST #Q1164459 and SDS FRANK LIBRETTO
ON ARREST #Q1164459,

Defendants.
-----X

Plaintiff **FABIAN SULLIVAN**, by his attorney THE LAW OFFICE OF
KAREEM R. VESSUP ESQ., complaining of the Defendants,
respectfully allege upon information and belief, as follows:

1. At all times herein mentioned, Plaintiff **FABIAN SULLIVAN** was, and still is, a resident of the County of Queens, City and State of New York.

2. At all times herein mentioned, Defendant **THE CITY OF NEW YORK** was, and still is, a municipal corporation duly organized and existing by virtue of the laws of the State of New York.

3. Upon information and belief, at all times mentioned, Defendants **DET. TIMOTHY VILLANI ON ARREST #Q1164459** and **SDS FRANK LIBRETTO ON ARREST #Q1164459** were and are police detectives and sergeants of the Defendant **THE CITY OF NEW YORK**, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK**.

4. On or about June 15, 2012 and within ninety (90) days after the claim herein arose, the Plaintiff served a Notice of Claim, in writing and sworn to on his behalf, upon the Defendant

THE CITY OF NEW YORK, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendant **THE CITY OF NEW YORK**, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.

5. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the cause of action herein alleged accrued.

6. The Plaintiff has complied with the request of the municipal Defendant for an oral examination pursuant to Section 50h of the General Municipal Law in that a 50h hearing was held on August 3, 2012.

7. That on or about July 29, 2011 at approximately 5:45pm inside of 92-24 Rockaway Beach Boulevard Queens, NY Defendants **DET. TIMOTHY VILLANI ON ARREST #Q1164459** and **SDS FRANK LIBRETTO ON ARREST #Q1164459** arrested Plaintiff **FABIAN SULLIVAN**.

8. Thereafter Plaintiff was brought to Central Booking and was charged and prosecuted in Queens County Criminal and Supreme Courts under Docket # 2011QN041638 and Indictment # 1580-2011 for various crimes that Plaintiff was innocent of.

9. Said prosecution continued until on or about May 8, 2012 when the aforementioned criminal prosecution ended with all charges against Plaintiff being dismissed.

AS AND FOR A FIRST CAUSE OF ACTION

10. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "9" with full force and effect as though set forth at length herein.

11. That on or about July 29, 2011 at approximately 5:45pm inside of 92-24 Rockaway Beach Boulevard Queens, NY the defendants jointly and severally in their capacity as police detectives and sergeants, without any warrant or any other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff **FABIAN SULLIVAN**, restrained him and interfered with his liberty and took him into custody without authority within the 100th Precinct in Queens County and thereafter charged him with various crimes under Criminal Court Docket #2011QN041638 and Indictment # 1580-2011.

12. The Plaintiff was thereafter held in custody for more than 24 hours before he was arraigned and remanded to Rikers Island where he remained for approximately 8 months.

13. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and at all times Plaintiff was aware of his confinement.

AS AND FOR A SECOND CAUSE OF ACTION

14. Plaintiff repeats, reiterates and re-alleges all of

the allegations contained in paragraphs "1" through "13" with full force and effect as though set forth at length herein.

15. That on or about July 29, 2011 at approximately 5:45pm inside of 92-24 Rockaway Beach Boulevard Queens, NY the defendants jointly and severally in their capacity as police officers, placed Plaintiff **FABIAN SULLIVAN** in imminent fear of a harmful or offensive physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and/or other objects which they used to physically seize, strike and/or restrain the plaintiff.

16. All of the above actions placed the Plaintiff in imminent fear of physical contact and at no time did the Plaintiff consent to the unlawful actions of the Defendants, nor was it privileged by law.

AS AND FOR A THIRD CAUSE OF ACTION

17. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "16" with full force and effect as though set forth at length herein.

18. That on or about July 29, 2011 at approximately 5:45pm inside of 92-24 Rockaway Beach Boulevard Queens, NY the defendants jointly and severally in their capacity as police officers, did commit a battery upon Plaintiff **FABIAN SULLIVAN** in that they subjected him to a harmful or offensive touching.

19. Defendants did not have legal cause to touch the

Plaintiff in the manner in which they did. Plaintiff did not consent to the aforementioned contact nor was it privileged by law.

20. Said contact caused the Plaintiff damage and injury.

AS AND FOR A FOURTH CAUSE OF ACTION

21. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "20" with full force and effect as though set forth at length herein.

22. That on July 29, 2011 Plaintiff was arrested and from that time until the end of the criminal prosecution on or about May 8, 2012, Defendants **DET. TIMOTHY VILLANI ON ARREST #Q11644459** and **SDS FRANK LIBRETTO ON ARREST #Q11644459** deliberately and maliciously prosecuted Plaintiff **FABIAN SULLIVAN**, an innocent man without any probable cause whatsoever, by filing or causing a criminal complaint to be filed in the Criminal Court of the City of New York, Queens County, for the purpose of falsely accusing the plaintiff of violations of the criminal laws of the State of New York.

23. The Defendants **DET. TIMOTHY VILLANI ON ARREST #Q11644459** and **SDS FRANK LIBRETTO ON ARREST #Q11644459**, failed to take reasonable steps to stop the prosecution of the Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's office to induce prosecution of the Plaintiff.

24. The commencement of these criminal proceedings under Docket No. 2011QN041638 was malicious, began in malice and without probable cause, so that the proceedings could succeed by the Defendants.

25. As a result of the malicious prosecution, Plaintiff was deprived of his liberty and suffered humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution. The Plaintiff made multiple court appearances to defend his liberty as a result of the unjust prosecution.

AS AND FOR A FIFTH CAUSE OF ACTION

26. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "25" with full force and effect as though set forth at length herein.

27. Defendants **DET. TIMONTHY VILLANI ON ARREST #Q11644459** and **SDS FRANK LIBRETTO ON ARREST #Q11644459** were at all times relevant, duly appointed and acting officers of the New York City Police Department.

28. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies, customs and usage of the State of New York and/or City of New York.

29. Plaintiff **FABIAN SULLIVAN** brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

30. That on or about July 29, 2011 at approximately 5:45pm inside of 92-24 Rockaway Beach Boulevard Queens, NY the Defendants, jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff **FABIAN SULLIVAN** in an excessive manner about his person, causing him physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff, seize or touch the Plaintiff. The Plaintiff did not consent to this illegal touching nor was this touching privileged by law.

31. That on or about July 29, 2011 at approximately 5:45pm inside of 92-24 Rockaway Beach Boulevard Queens, NY the Defendants, jointly and severally did place Plaintiff **FABIAN SULLIVAN** in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and/or other objects which they used to physically seize, strike and/or restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

32. That on or about July 29, 2011 at approximately 5:45pm inside of 92-24 Rockaway Beach Boulevard Queens, NY, the Defendants, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained him and interfered with his liberty and then took him into custody within the 100th Precinct in Queens County and thereafter charged him with the

crimes on Docket No. 2011QN041638. The Plaintiff was thereafter held in custody for more than 24 hours before he was arraigned and at his arraignment was remanded to Riker's Island where he remained for approximately 8 months. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

33. That beginning on or about July 29, 2011 and continuing until the end of the aforementioned criminal prosecution on or about May 8, 2012 the Defendants, armed police, while effectuating the seizure of the Plaintiff **FABIAN SULLIVAN**, did search, seize, assault and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested and maliciously prosecuted without the Defendants possessing probable cause to do so and without a reasonable suspicion of probable cause. Plaintiff was kept in custody by defendants for more than 24 hours until he was arraigned and at his arraignment was remanded to Riker's Island where Plaintiff remained for approximately 8 months.

34. The above actions of the Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution:

- a. Freedom from assault to his person;

- b. Freedom from battery to his person;
- c. Freedom from illegal search and seizure;
- d. Freedom from false arrest;
- e. Freedom from malicious prosecution.

35. The Defendants subjected Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights afforded individuals by the Fourth and Fourteenth Amendments to the United States Constitution.

36. The direct and proximate results of the Defendants' acts are that the plaintiff was forced to endure pain and suffering, all to his detriment. He has suffered severe and permanent injuries of a psychological nature.

AS AND FOR A SIXTH CAUSE OF ACTION

37. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "36" with full force and effect as though set forth at length herein.

38. Defendant **THE CITY OF NEW YORK** has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only make an arrest based on probable cause

39. Defendant **THE CITY OF NEW YORK** was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest or search warrant, said police officers of **THE CITY OF NEW YORK** are not to arrest individuals such as the Plaintiff here where probable cause is lacking.

40. **THE CITY OF NEW YORK** is negligent due to its failure to implement such a policy with its Police Department or actively enforce the law, that Probable cause must be present before an individual such as Plaintiff herein can be arrested.

41. The foregoing acts, omissions and systemic failures are customs and policies of **THE CITY OF NEW YORK** which caused that police officers to falsely arrest, maliciously prosecute, illegally seize and search the Plaintiff, commit an assault/battery to his person under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

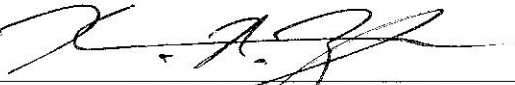
AS AND FOR A SEVENTH CAUSE OF ACTION

42. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "41" as if set forth at length herein.

43. Defendant **THE CITY OF NEW YORK** was negligent in that prior to and at the time of the acts complained of herein, due to

the prior history of the Police Officer Defendants knew or should have known of the bad disposition and/or reputation of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and/or reputation of the fact these officers were not suitable to be hired and employed by **THE CITY OF NEW YORK** and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in an amount that exceeds the jurisdictional limit of all lower courts, together with punitive damages, attorney's fees and costs for bringing this case.


Kareem R. Vessup Esq.

VERIFICATION

STATE OF NEW YORK)
) ss.
COUNTY OF QUEENS)

FABIAN SULLIVAN, being duly sworn, says:

I am the Plaintiff in the action herein and I have read the annexed:

SUMMONS AND COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my personal files.

Dated: JAMAICA, NEW YORK
MAY 29, 2013


Fabian Sullivan

Subscribed and sworn to before me
on this the 31st day of May, 2013



NOTARY PUBLIC

Anthony Augustus
Notary Public, Queens County
Commission Expires 02/08/14
No. 02AU6000999